



United States
Attorney's Office
Southern District of Texas



Houston doctor pays six figures to settle False Claims Act liability involving neurostimulator devices

Tuesday, June 3, 2025

For Immediate Release

U.S. Attorney's Office, Southern District of Texas

HOUSTON – A 68-year-old Houston man has agreed to pay \$390,082 to resolve allegations he submitted false claims to Medicare for the surgical implantation of neurostimulator electrodes, announced U.S. Attorney Nicholas J. Ganjei.

Dr. Benjamin Tionson is a pain management doctor who practices in Houston, Sugar Land and Katy. Pain Reduction Center P.A. is an entity Tionson used to conduct his medical practice.

From Dec. 7, 2021, to Dec. 14, 2022, Tionson billed Medicare for the surgical implantation of neurostimulator electrodes. These are invasive procedures usually requiring use of an operating room. As a result, Medicare pays thousands of dollars per procedure.

However, neither Tionson nor his staff performed these surgical procedures, according to the allegations.

Instead, patients allegedly received devices used for electro-acupuncture, which only involved inserting monofilament wire a few millimeters into patients' ears and taping the neurostimulator behind the ear with an adhesive. All device placements took place in Tionson's clinic, not a hospital or surgical center, and no incision was made on a patient, according to the allegations.

The U.S. Attorney's Office conducted the investigation with Department of Health and Human Services – Office of Inspector General. Assistant U.S. Attorney Laura E. Collins handled the matter.

The claims resolved by the settlement are allegations only and there has been no determination of liability.

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